

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 06/24/2026 TIME: 9:00 and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

(1) The Court - by calling (408) 808-6856 and

(2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV428612	Plaza Services, LLC vs George Berry	Motion: Set Aside Default/Judgment Please Ctrl Click on (or scroll down to) Line 1
LINE 2	24CV434201	Balbinder Kaur vs General Motors, LLC	Motion: Attorneys Fees & Costs
LINES 3-4	25CV456689	Richard Chamberlain vs Santa Clara Public Defender's Office et al	Hearing: Motion to Strike Hearing: Demurrer Please Ctrl Click on (or scroll down to) Line 3
LINES 5-6	25CV460503	Roy Toledo vs D.H. Smith Company, Inc.	Motion: Sanctions & Protective Order Please Ctrl Click on (or scroll down to) Line 5
LINE 7	25CV471073	John Doe L.M., an individual, vs Craig Chandler et al	Motion: Compel Please Ctrl Click on (or scroll down to Line 7)
LINES 8	25CV478936	Ari Lazier vs Walnut Creek Ford et al	Hearing: Petition Compel Arbitration Please scroll down to Line 8
9:01	CASE #	CASE TITLE	RULING
LINE 1	25CV468267	Mercy Falls, LLC vs United Security Specialists, Inc. et al	Motion: Withdraw as attorney Notice is proper. No opposition received. Attorney Jacqueline Simonovich's motion to be relieved as counsel for Plaintiff Mercy Falls LLC is GRANTED. Movant to e-file Form MC-053 within 2 days of the hearing. Movant shall give notice to Plaintiff within 2 days of the date of the hearing, including the following: Plaintiff must appear at the Further Case Management Conference (to be scheduled) in Department 12. * Counsel to appear for scheduling*

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- oo0oo -

Calendar Line 1

Case Name: *Plaza Services LLC v. George Berry*

Case No.: 24CV428612

Defendant's Motion to Set Aside Default Judgment for lack of service

The Court file reflects a facially valid proof of substituted service on July 25, 2024 at 4:55 p.m. at Defendant's residence on Sequoia Drive in Gilroy, California. A signed proof of service creates a rebuttable presumption that service was properly effected. Defendant bears the burden to present admissible evidence establishing lack of valid service. Defendant has not met his burden to rebut that presumption.

Defendant's motion argues that front door surveillance footage exists showing improper service (to be provided upon request.) No declaration regarding details provided. Unsubmitted evidence is insufficient to rebut the presumption of proper service. The Court does not consider evidence referenced in a motion but not submitted. The Court declines to continue the hearing sua sponte to permit supplementation of the evidentiary record based solely on assertions that additional evidence may exist.

The Court further notes that Defendant did not file proof of service of the motion itself. While this defect is not jurisdictional, it reflects noncompliance with the procedural requirements governing noticed motions and further supports denial of relief on the current record.

Accordingly, Defendant's motion to set aside default judgment is DENIED.

The Court will prepare the Order.

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Calendar Line 2

Case Name: *Balbinder Kaur v. General Motors, LLC*

Case No.: 24CV434201

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the motion is untimely and that the fees requested are excessive and based on templated work.

I. Timeliness

Defendant contends the motion is untimely under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644. Defendant argues that the 180 day period to file and serve the motion began 45 days after the May 15, 2025 settlement. Defendant relies on *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155) in support of its position that settlements serve as judgments. The court is not persuaded that this motion violates statutory deadlines. *Hatlevig* tied the 180 day deadline to the actual entry of dismissal. Because no dismissal has been entered in this case and the matter remains pending on the docket, the 180 period has not begun to run. (See California Rules of Court, rule 3.1702(b)(1)).

II. Reasonableness of Fees

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$28,161.50 in attorney's fees based on 51.6 hours of work, plus an additional 6.0 hours for reviewing Defendant's opposition, preparing a reply, and attending the hearing on this motion. Plaintiff also seeks \$1,487.33 in costs. Plaintiff requests hourly rates of \$695 for partner-level work performed by attorney David Barry, \$525 for associate-level work performed by attorney Debora Rabieian, and \$450 for attorney Brian Kim. In the June 16, 2026 reply brief, Plaintiff voluntarily reduced the total fees from the original \$32,609.50 in attorney's fees based on 64 total hours with 12.4 hours of anticipated time. Plaintiff concedes that the anticipatory time he billed for the motion exceeded the time spent. Plaintiff withdraws 6.4 hours at Mr. Barry's hourly rate of \$695 for a total amount of \$4,448.00 from his Motion for Attorneys' Fees and Costs.

Mr. Barry declares he has approximately 23 years of legal experience, with nearly 20 years concentrating in consumer protection and lemon law litigation. He notes that courts have previously approved hourly rates of \$675 (2024-2025) for his work across multiple California counties. Plaintiff contends the requested \$695 rate is reasonable because of rates awarded in the same market to attorneys with comparable experience, as well as the survey of billing rates.

Defendant argues the rates and hours are inflated, the case involved no novel or unique issues, and the matter resolved within approximately 14 months of filing. Defendant argues the court should adjust rates to \$595 for Mr. Barry, \$350 for mid-level associates, and \$300 for juniors, based on Santa Clara rates.

Having reviewed the moving papers, opposition, reply, declarations, and billing records submitted, the Court finds that the number of hours expended is generally reasonable in this routine Song-Beverly repurchase claim that resolved after approximately 14 months. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. The Court acknowledges that reductions by Plaintiff's counsel have already been made.

With respect to hourly rates, the Court finds that the requested hourly rate of \$695 for partner-level work exceeds the prevailing market rate in Santa Clara County for comparable consumer warranty litigation. While the Court recognizes Mr. Barry's experience in Song-Beverly matters, the Court finds \$550 per hour to be a reasonable rate for partner-level work and \$350 per hour to be a reasonable rate for associate-level work. These rates more closely reflect the prevailing market rates for comparable services in this community. Accordingly, the lodestar shall be recalculated.

With respect to costs, Plaintiff seeks recovery of \$1,487.33, but the memorandum of costs and supporting documentation currently submitted are insufficient to permit the Court to verify the amounts requested, including estimated court reporter fees and undocumented e-filing fees. Plaintiff shall resubmit documentation supporting the claimed costs, including receipts or other appropriate proof, with the proposed order.

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court sets the reasonable hourly rates at \$550 for partner-level work, and \$350 for associate-level work.
2. The Court will apply a reasonable reduction to the hours claimed, including the reduction of anticipated time to a maximum of 4.0 hours.
3. Plaintiff shall submit documentation supporting the claimed costs with the proposed order.

If no party contests this tentative ruling, the compensable time shall be reduced by one hour. The Court will adopt the foregoing rates and reductions and will award fees and costs in the recalculated amount.

Plaintiff shall prepare, serve, and submit a proposed order consistent with this ruling, including the recalculated fee award and supporting documentation for costs, accompanied by the necessary Forms EFS-020, within 7 days of the hearing.

Calendar Line 3-4

Case Name: *Richard Chamberlain v. Santa Clara Public Defender's Office, et al.*

Case No.: 25-CV-456689

Factual and Procedural Background

This is an action for excessive force, unlawful detention, and related claims brought by plaintiff Richard Chamberlain ("Plaintiff"), a self-represented litigant, against the Santa Clara Public Defender's Office, Santa Clara District Attorney's Office, and Campbell Police Department ("CPD") (collectively, "Defendants").

On October 30, 2025, Plaintiff filed the operative first amended complaint ("FAC") against Defendants alleging causes of action for:

- (1) Excessive Force;
- (2) Unlawful Detention;
- (3) Negligence;
- (4) Ineffective Assistance of Counsel; and
- (5) Civil Rights Violations (42 U.S.C. § 1983).

On December 2, 2025, defendant City of Campbell (erroneously sued as CPD) ("City") filed the motions presently before the court, a demurrer and motion to strike to the FAC. Plaintiff filed written oppositions. The City filed reply papers.

A further case management conference is also scheduled for August 19, 2026.

Self-Represented Litigants

Self-represented litigants "are held to the same standards as attorneys." (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 ["self-represented litigants are generally entitled to no special treatment"].) "[M]ere self-representation is not a ground for exceptionally lenient treatment." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, "exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Id.* at p. 985.)

Demurrer to the FAC

The City raises the following arguments in support of the demurrer to the FAC: (1) Plaintiff did not comply with the claim presentation requirement in the Government Tort Claims Act and thus his state tort claims are time-barred; (2) the FAC fails to allege a statutory basis for his claims against the City; (3) the FAC fails to state any valid cause of action; (4) the FAC is uncertain; and (5) the City, a public entity, is immune from suit for acts alleged in the FAC. In opposition, Plaintiff essentially concedes the defects raised on demurrer as he has offered to file a second amended complaint ("SAC") with the court. (See OPP at Ex. 1.) Thus, the court treats the opposition as a concession that the instant demurrer has merit and is therefore sustainable for reasons outlined by the City. As this is the first challenge to the pleadings, the court will provide Plaintiff an opportunity for leave to amend. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the

pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].) Should the City take issue with Plaintiff's SAC, it may file the appropriate pleading motion for demurrer, motion for judgment on the pleadings (after the filing of an answer), or dispositive motion for summary judgment or summary adjudication based on admissible evidence.

Consequently, the demurrer to the FAC is SUSTAINED in its entirety WITH 15 DAYS LEAVE TO AMEND.

Motion to Strike Prayer for Punitive Damages

Given the court's ruling on demurrer, the motion to strike the prayer for punitive damages is MOOT.

Disposition

The demurrer to the FAC is SUSTAINED in its entirety WITH 15 DAYS LEAVE TO AMEND.

The motion to strike the prayer for punitive damages is MOOT.

The December 9, 2026 hearing date on Plaintiff's motion for leave to file a SAC is hereby VACATED.

The court will prepare the Order.

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Calendar Line 5-6

Case Name: *Roy Toledo v D.H. Smith Company, Inc.*

Case No.: 25CV460503

PLAINTIFF'S MOTION FOR MONETARY SANCTIONS

[Plaintiff's requests for a protective order and appointment of a discovery referee have been withdrawn. The sole remaining issues are Plaintiff's requests for monetary sanctions pursuant to Code of Civil Procedure sections 2023.030 and 128.5.]

The Court previously considered the circumstances surrounding the parties' January 23, 2026 deposition dispute in connection with Defendant's motion to compel further deposition testimony. In its April 8, 2026 order, the Court reviewed the deposition excerpts and correspondence submitted by the parties, found that the deposition had become unnecessarily contentious, noted that certain commentary by examining counsel contributed to the escalation of the dispute, granted Defendant's motion to compel completion of Plaintiff's deposition, and denied Defendant's request for sanctions.

I. Request for Sanctions Under Code of Civil Procedure Section 2023.030

Code of Civil Procedure section 2023.030 authorizes sanctions for misuse of the discovery process. Misuses of the discovery process include, among other things, employing a discovery method in a manner that causes unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2023.010, subd. (c).)

Plaintiff contends that defense counsel engaged in a pattern of hostile and demeaning conduct throughout discovery, including argumentative deposition questioning, sarcastic and condescending communications, mischaracterizations concerning deposition scheduling, and repeated accusations that Plaintiff and counsel were attempting to delay or obstruct discovery. Plaintiff points to, among other things, defense counsel's references to opposing counsel's "shenanigans," an email offering to provide "wi-fi and coffee and bagel" if counsel arrived early, comments regarding a purported "delay, derail and prevent strategy," and statements made during deposition proceedings that Plaintiff characterizes as belittling, intimidating, or unnecessarily combative.

The Court does not condone discourteous, sarcastic, argumentative, or condescending conduct during discovery. Counsel are expected to conduct themselves in accordance with the California Attorney Guidelines of Civility and Professionalism and the Santa Clara County Bar Association Code of Professionalism. As recognized in *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1015, depositions should be conducted in a professional manner free from harassment and intimidation.

The Court's concern regarding the tone of certain communications and deposition exchanges does not end the analysis. The issue before the Court is whether the conduct satisfies the statutory standards for monetary sanctions. On this record, the Court concludes it does not.

Having again reviewed the parties' submissions, the Court reaches the same conclusion it reached in connection with the April 8, 2026 ruling. The record reflects a contentious discovery dispute, mutual accusations of misconduct, and instances of unprofessional behavior. The Court previously observed that certain commentary by examining counsel contributed to the escalation of the dispute. However, the Court is not persuaded that the conduct identified by Plaintiff constitutes a misuse of the discovery process warranting monetary sanctions under Code of Civil Procedure section 2023.030.

The Court further notes that, when ruling on Defendant's motion to compel arising from the same underlying events, it declined to impose sanctions. Nothing presented in the instant motion warrants a different conclusion.

Accordingly, Plaintiff's request for sanctions pursuant to Code of Civil Procedure section 2023.030 is DENIED.

II. Request for Sanctions Under Code of Civil Procedure Section 128.5

Code of Civil Procedure section 128.5 authorizes sanctions only for actions or tactics made in bad faith that are frivolous or solely intended to cause unnecessary delay. (Code Civ. Proc., § 128.5, subd. (a).) A tactic is frivolous if it is totally and completely without merit or undertaken for the sole purpose of harassing an opposing party. (Code Civ. Proc., § 128.5, subd. (b)(2).)

Because of the seriousness of such sanctions, the statute is directed at exceptional circumstances and must be applied cautiously. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 147; *Monex Internat., Ltd. v. Peinado* (1990) 224 Cal.App.3d 1619, 1622.) The power to impose sanctions under section 128.5 should be exercised sparingly and reserved for truly egregious conduct. (*Luke v. Baldwin-United Corp.* (1985) 167 Cal.App.3d 664, 669.)

Plaintiff argues that defense counsel's conduct demonstrates a pattern of harassment and manipulation akin to the conduct at issue in *Sahafzadeh-Taeb*. The Court disagrees. The conduct described by Plaintiff—including sarcastic emails, discourteous remarks, accusations concerning scheduling disputes, and contentious deposition exchanges—does not establish the type of bad-faith actions or tactics contemplated by section 128.5. Unlike the conduct addressed in *Sahafzadeh-Taeb*, the record here does not demonstrate litigation tactics that were frivolous, manipulative, obstructive, or undertaken solely for purposes of delay. Nor does the Court find evidence sufficient to establish the subjective bad faith required by the statute.

The Court remains troubled by the tone reflected in portions of the record. However, even assuming the conduct occurred substantially as Plaintiff describes, the Court cannot conclude that Defendant or defense counsel engaged in actions or tactics that were frivolous or intended solely to cause unnecessary delay within the meaning of section 128.5.

Accordingly, Plaintiff's request for sanctions pursuant to Code of Civil Procedure section 128.5 is DENIED.

III. Defendant's Request for Sanctions

Defendant requests sanctions on the ground that Plaintiff's motion lacks merit.

The Court declines to award sanctions. Although Plaintiff has not prevailed on the motion, the Court cannot conclude that the motion was frivolous or brought solely for purposes of harassment or delay. The Court's prior ruling acknowledged concerns regarding the tone and conduct reflected in portions of the parties' discovery interactions. Under these circumstances, an award of sanctions against Plaintiff would be inappropriate.

Defendant's request for sanctions is DENIED.

DISPOSITION

Plaintiff's motion for monetary sanctions is DENIED.

Defendant's request for sanctions is DENIED.

The Court will prepare the Order.

Calendar Line 7**Case Name:** *John Doe. L.M. v. Craig Chandler et al.***Case No.:** 25CV471073**Plaintiff's Motion to Compel California Commission on Teacher Credentialing's Compliance With Subpoena for Production of Business Records****Procedural Background**

Plaintiff moves pursuant to Code of Civil Procedure sections 1987.1 and 2025.480 to compel nonparty California Commission on Teacher Credentialing ("CCTC") to comply with a deposition subpoena for production of business records served October 23, 2025, with a production date of November 21, 2025. The subpoena seeks investigative, disciplinary, credentialing, and related records concerning Craig Richard Chandler, a former teacher alleged to have sexually abused Plaintiff. Plaintiff also seeks monetary sanctions in the amount of \$3,060 pursuant to Code of Civil Procedure sections 1987.2 and 2023.010.

CCTC opposes the motion, asserting procedural defects, statutory confidentiality under the Education Code, official information and deliberative process privileges under Evidence Code section 1040, privacy concerns, and limitations on production based on *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039.

Procedural Objections

Although CCTC contends Plaintiff failed to meet and confer regarding specific entries in the January 2026 privilege log, the record reflects that the parties engaged in substantive meet and confer efforts addressing the core disputes, including categorical objections based on statutory confidentiality, privilege, and privacy. The subsequent identification of individual log entries does not alter the essential nature of the dispute, which has been fully briefed.

Accordingly, the Court declines to deny the motion on procedural grounds. The motion is properly considered on its merits.

Relevance and Scope of Discovery

Discovery is permitted as to "any nonprivileged matter that is relevant to the subject matter involved in the pending action or reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

The subpoena seeks CCTC records relating to Defendant Chandler's ("Chandler") credentialing, disciplinary history, and investigative file, including application materials, criminal conviction disclosures, internal notes, and committee materials.

The privilege log reflects that responsive documents include Chandler's 2002 credential application and criminal conviction disclosure, 2003 investigative notes concerning diversion proceedings, internal chronology entries, requests for law enforcement records, and agenda and committee materials addressing credential issuance and disciplinary determinations.

These materials are relevant to issues of notice, foreseeability, and negligent hiring and supervision. They bear on what information was known or available to CCTC regarding Chandler's fitness to teach and the actions the agency took in response.

The relevance threshold under Code of Civil Procedure section 2017.010 is satisfied.

Education Code Confidentiality Provisions

Education Code section 44230, subdivision (a)(2), provides that credential-related information shall not be disclosed absent an order of a court of competent jurisdiction. This language contemplates judicial authorization rather than absolute nondisclosure. Education Code section 44248 imposes criminal penalties for unauthorized disclosure by Commission personnel but does not restrict a court's authority to order production in civil discovery. These provisions therefore require court supervision of disclosure and appropriate protective conditions, rather than categorical immunity from discovery.

Official Information Privilege and Privacy

Evidence Code section 1040 provides a qualified privilege for official information where disclosure is against the public interest. (Evid. Code, § 1040, subds. (a), (b).)

The Court must balance the public interest in confidentiality against the interest of justice in disclosure. Here, the requested materials concern completed credentialing and disciplinary proceedings involving a former educator later convicted of aggravated sexual assault. The litigation concerns institutional notice, foreseeability, and the adequacy of credentialing safeguards.

While the Court recognizes legitimate confidentiality interests, including protection of third-party identifying information and certain internal deliberative materials, those interests are not sufficient to justify wholesale withholding of responsive records.

Any legitimate confidentiality concerns may be addressed through targeted redaction of personal identifiers, entry of a protective order limiting use and dissemination, and *in camera* review, if necessary, for narrowly disputed categories

Business Records Subpoena and *Cooley v. Superior Court*

CCTC contends that certain documents identified in the privilege log are not "business records" because they were not authored by the Commission and therefore cannot be produced under a business records subpoena. This argument misapprehends *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039. *Cooley* addresses the evidentiary requirements for a custodian's certification of business records under Evidence Code section 1561. It does not create a discovery privilege and does not authorize a nonparty agency to withhold otherwise responsive documents in its possession.

A subpoenaed entity must produce responsive, nonprivileged documents within its possession, custody, or control that are maintained, received, or relied upon in the ordinary course of its

regulatory functions. Whether a particular document can later be authenticated under Evidence Code section 1561 is a separate evidentiary issue that does not govern discoverability.

Accordingly, CCTC may not withhold responsive records on the ground that they were authored by third parties or that the custodian cannot provide a complete certification. To the extent CCTC contends certain documents cannot be authenticated under Evidence Code section 1561, it shall identify those documents with specificity and provide a supplemental declaration explaining the limitation.

Redaction and Protective Conditions

CCTC's privacy concerns are well taken, particularly with respect to third-party identifying information. However, those concerns can be adequately addressed through narrowly tailored redactions, including but not limited to: Social Security numbers, home addresses, dates of birth, and other sensitive personal identifying information of third parties and nonparties.

A protective order should govern dissemination and use of produced materials.

Sanctions

The issues presented involve substantial questions regarding statutory confidentiality provisions, qualified governmental privileges, and subpoena enforcement standards. The Court finds the positions of both parties were substantially justified. (Code Civ. Proc., §§ 1987.2, 2023.010.) As such, the Court denies all requests for sanctions.

DISPOSITION

The motion is GRANTED IN PART and DENIED IN PART as follows:

1. CCTC shall produce all responsive, nonprivileged documents within its possession, custody, or control consistent with this ruling, including records maintained, received, or relied upon in the Commission's credentialing and disciplinary functions.
2. Permissible redactions shall be made to protect third-party privacy interests as set forth above.
3. CCTC shall provide a supplemental declaration identifying any documents it contends cannot be authenticated under Evidence Code section 1561 and explaining the basis for such limitation.
4. Sanctions are denied.

Plaintiff to prepare the proposed order accompanied by the necessary EFS-020 Form within 7 days of the hearing.

Calendar Line 8**Case Name:** *Ari Lazier v. Ford Motor Company et al.***Case No.:** 25CV478936**PETITION TO COMPEL ARBITRATION**

Plaintiff Ari Lazier (“Plaintiff”) purchased a 2020 Ford Transit (“Subject Vehicle”) in January 2020 from Walnut Creek Ford (“Dealership”). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) Plaintiff sued Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (“FAA”) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s

existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on the reverse side of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*) The RISC further drew the arbitration provision to Plaintiff’s attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON THE REVERSE SIDE, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ ‘A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.’ ”].)

Plaintiff argues Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:18-4:10.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Dealership has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue “warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership].” (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer’s attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126.) By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiff’s claims.

The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not addressing Dealership’s arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective.” (Reply at pp. 8:27-9:2.) Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

DISPOSITION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.